

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 866

BY APPROPRIATIONS COMMITTEE

AN ACT

RELATING TO APPROPRIATIONS TO THE CONSTITUTIONAL OFFICERS; APPROPRIATING MONEYS TO THE OFFICE OF THE ATTORNEY GENERAL, THE STATE CONTROLLER, THE EXECUTIVE OFFICE OF THE GOVERNOR, THE OFFICE OF THE LIEUTENANT GOVERNOR, THE SECRETARY OF STATE, AND THE STATE TREASURER FOR FISCAL YEAR 2027; LIMITING THE NUMBER OF AUTHORIZED FULL-TIME EQUIVALENT POSITIONS FOR FISCAL YEAR 2027; EXEMPTING THE APPROPRIATION TO THE EXECUTIVE OFFICE OF THE GOVERNOR FROM EXPENSE CLASS AND PROGRAM TRANSFER LIMITATIONS; EXEMPTING THE APPROPRIATION TO THE OFFICE OF THE LIEUTENANT GOVERNOR FROM EXPENSE CLASS TRANSFER LIMITATIONS; EXEMPTING THE APPROPRIATION TO THE OFFICE OF THE ATTORNEY GENERAL FROM EXPENSE CLASS AND PROGRAM TRANSFER LIMITATIONS; PROVIDING REAPPROPRIATION AUTHORITY FOR THE SECRETARY OF STATE; PROVIDING FOR INDIRECT COST RECOVERY FOR THE OFFICE OF THE STATE CONTROLLER; PROVIDING REAPPROPRIATION AUTHORITY FOR THE DATA PROCESSING SERVICES FUND; PROVIDING REAPPROPRIATION AUTHORITY FOR THE GENERAL FUND; TRANSFERRING CASH FROM THE TECHNOLOGY INFRASTRUCTURE STABILIZATION FUND TO THE CONTROL AGENCY ACCOUNT; PROVIDING FOR CASH BALANCE RECONCILIATION; PROVIDING REQUIREMENTS REGARDING PAYMENT OF BANK SERVICE FEES; PROVIDING CONTINUOUS APPROPRIATION AUTHORITY FOR THE STATE TREASURER; PROVIDING CONDITIONS, LIMITATIONS, AND RESTRICTIONS; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. There is hereby appropriated to the Constitutional Officers the following amounts to be expended according to the designated programs and expense classes from the listed funds for the period July 1, 2026, through June 30, 2027:

	FOR PERSONNEL COSTS	FOR OPERATING EXPENDITURES	FOR CAPITAL OUTLAY	FOR TRUSTEE AND BENEFIT PAYMENTS	TOTAL
I. ATTORNEY GENERAL:					
A. STATE LEGAL SERVICES:					
FROM:					
General					
Fund	\$26,021,900	\$1,289,000			\$27,310,900
Miscellaneous Revenue					
Fund	364,500	28,300			392,800
Consumer Protection					
Fund	350,200	153,000			503,200

	FOR	FOR	FOR	FOR	
	PERSONNEL	OPERATING	CAPITAL	TRUSTEE AND	
	COSTS	EXPENDITURES	OUTLAY	BENEFIT	TOTAL
				PAYMENTS	
Idaho Millennium Income					
Fund	274,100	2,400			276,500
Federal Grant					
Fund	<u>1,008,100</u>	<u>209,300</u>			<u>1,217,400</u>
TOTAL	\$28,018,800	\$1,682,000			\$29,700,800
B. INTERNET CRIMES AGAINST CHILDREN:					
FROM:					
General					
Fund	\$1,666,400	\$327,400		\$1,017,300	\$3,011,100
Federal Grant					
Fund	<u>160,200</u>	<u>218,800</u>		<u>6,000</u>	<u>385,000</u>
TOTAL	\$1,826,600	\$546,200		\$1,023,300	\$3,396,100
C. SPECIAL LITIGATION:					
FROM:					
General					
Fund		\$740,700			\$740,700
DIVISION TOTAL	\$29,845,400	\$2,968,900		\$1,023,300	\$33,837,600
II. STATE CONTROLLER:					
A. ADMINISTRATION:					
FROM:					
General					
Fund	\$1,468,300	\$1,801,200			\$3,269,500
Federal COVID-19 Relief					
Fund	<u>0</u>	<u>1,607,600</u>			<u>1,607,600</u>
TOTAL	\$1,468,300	\$3,408,800			\$4,877,100
B. STATEWIDE ACCOUNTING:					
FROM:					
General					
Fund	\$1,838,300	\$363,100			\$2,201,400

	FOR	FOR	FOR	FOR	
	PERSONNEL	OPERATING	CAPITAL	TRUSTEE AND	
	COSTS	EXPENDITURES	OUTLAY	BENEFIT	TOTAL
				PAYMENTS	
1					
2					
3					
4					
5	Miscellaneous Revenue				
6	Fund	<u>0</u>	<u>5,000</u>		<u>5,000</u>
7	TOTAL	\$1,838,300	\$368,100		\$2,206,400
8	C. COMPUTER CENTER:				
9	FROM:				
10	Data Processing Services				
11	Fund	\$6,217,300	\$8,349,600	\$62,800	\$14,629,700
12	D. ENTERPRISE BUSINESS OPERATIONS:				
13	FROM:				
14	General				
15	Fund	\$5,742,800	\$12,105,200		\$17,848,000
16	Miscellaneous Revenue				
17	Fund	<u>0</u>	<u>5,000</u>		<u>5,000</u>
18	TOTAL	\$5,742,800	\$12,110,200		\$17,853,000
19	DIVISION TOTAL	\$15,266,700	\$24,236,700	\$62,800	\$39,566,200
20	III. EXECUTIVE OFFICE OF THE GOVERNOR:				
21	A. ADMINISTRATION - GOVERNOR'S OFFICE:				
22	FROM:				
23	General				
24	Fund	\$2,317,100	\$327,700		\$2,644,800
25	B. ACTING GOVERNOR PAY:				
26	FROM:				
27	General				
28	Fund	\$17,800			\$17,800
29	C. EXPENSE ALLOWANCE:				
30	FROM:				
31	General				
32	Fund		\$4,900		\$4,900

	FOR	FOR	FOR	FOR	
	PERSONNEL	OPERATING	CAPITAL	TRUSTEE AND	
	COSTS	EXPENDITURES	OUTLAY	BENEFIT	TOTAL
				PAYMENTS	
1					
2					
3					
4					
5	D. GOVERNOR'S EMERGENCY:				
6	FROM:				
7	Governor's Emergency				
8	Fund		\$2,000,000		\$2,000,000
9	DIVISION TOTAL	\$2,334,900	\$2,332,600		\$4,667,500
10	IV. LIEUTENANT GOVERNOR:				
11	FROM:				
12	General				
13	Fund	\$270,100	\$32,400		\$302,500
14	V. SECRETARY OF STATE:				
15	A. SECRETARY OF STATE:				
16	FROM:				
17	General				
18	Fund	\$3,692,300	\$1,883,800		\$5,576,100
19	B. COMMISSION ON UNIFORM STATE LAWS:				
20	FROM:				
21	General				
22	Fund		\$60,500		\$60,500
23	DIVISION TOTAL	\$3,692,300	\$1,944,300		\$5,636,600
24	VI. STATE TREASURER:				
25	FROM:				
26	General				
27	Fund	\$1,151,500	\$489,300		\$1,640,800
28	State Treasurer LGIP				
29	Fund	224,100	140,700		364,800
30	Treasurer's Office - Professional Services				
31	Fund	1,009,500	623,600		1,633,100
32	Idaho Millennium Income				
33	Fund		80,000		80,000

	FOR PERSONNEL COSTS	FOR OPERATING EXPENDITURES	FOR CAPITAL OUTLAY	FOR TRUSTEE AND BENEFIT PAYMENTS	TOTAL
Abandoned Property Trust - Unclaimed Property					
Fund	<u>1,223,500</u>	<u>515,500</u>			<u>1,739,000</u>
TOTAL	\$3,608,600	\$1,849,100			\$5,457,700
GRAND TOTAL	\$55,018,000	\$33,364,000	\$62,800	\$1,023,300	\$89,468,100

SECTION 2. FTP AUTHORIZATION. In accordance with Section 67-3519, Idaho Code, each of the programs listed below in Constitutional Officers is authorized no more than the following number of full-time equivalent positions at any point during the period July 1, 2026, through June 30, 2027, unless specifically authorized by the Governor. The Joint Finance-Appropriations Committee will be notified promptly of any increased positions so authorized:

Executive Office of the Governor	17.00
Office of the Lieutenant Governor	3.00
Office of the Attorney General	227.40
Office of the State Controller	125.00
Office of the Secretary of State	35.50
Office of the State Treasurer	30.00

SECTION 3. EXEMPTIONS FROM EXPENSE CLASS AND PROGRAM TRANSFER LIMITATIONS -- EXECUTIVE OFFICE OF THE GOVERNOR. For fiscal year 2027, the Executive Office of the Governor is hereby exempted from the provisions of Section 67-3511 (1), (2), and (3), Idaho Code, allowing unlimited transfers between expense classes and between programs, for all moneys appropriated to it for the period July 1, 2026, through June 30, 2027. Legislative appropriations shall not be transferred from one fund to another fund unless expressly approved by the Legislature.

SECTION 4. EXEMPTIONS FROM EXPENSE CLASS TRANSFER LIMITATIONS -- OFFICE OF THE LIEUTENANT GOVERNOR. For fiscal year 2027, the Office of the Lieutenant Governor is hereby exempted from the provisions of Section 67-3511 (1) and (3), Idaho Code, allowing unlimited transfers between expense classes, for all moneys appropriated to it for the period July 1, 2026, through June 30, 2027. Legislative appropriations shall not be transferred from one fund to another fund unless expressly approved by the Legislature.

SECTION 5. EXEMPTIONS FROM EXPENSE CLASS AND PROGRAM TRANSFER LIMITATIONS -- OFFICE OF THE ATTORNEY GENERAL. The Office of the Attorney General is hereby exempted from the provisions of Section 67-3511 (1), (2), and (3), Idaho Code, allowing unlimited transfers between expense classes and between programs, for all moneys appropriated to it for the period July 1, 2026, through June 30, 2027. Legislative appropriations shall not be

1 transferred from one fund to another fund unless expressly approved by the
2 Legislature.

3 SECTION 6. REAPPROPRIATION AUTHORITY -- OFFICE OF THE SECRETARY OF
4 STATE. There is hereby reappropriated to the Office of the Secretary of State
5 any unexpended and unencumbered balances appropriated or reappropriated to
6 the Office of the Secretary of State for election integrity audits and elec-
7 tions system upgrades for fiscal year 2026 to be used for the period July 1,
8 2026, through June 30, 2027. The Office of the State Controller shall con-
9 firm the reappropriation amounts, by fund, expense class, and program, with
10 the Legislative Services Office prior to processing the reappropriation
11 authorized herein.

12 SECTION 7. INDIRECT COST RECOVERY -- OFFICE OF THE STATE CONTROLLER.
13 The moneys assessed by the Division of Financial Management in accordance
14 with Section 67-3531, Idaho Code, for the Office of the State Controller ser-
15 vices shall be placed in the Indirect Cost Recovery Fund. On June 30, 2027,
16 the State Controller shall transfer the amount assessed in the statewide
17 cost allocation plan from the Indirect Cost Recovery Fund to the state Gen-
18 eral Fund.

19 SECTION 8. REAPPROPRIATION AUTHORITY FOR THE DATA PROCESSING SERVICES
20 FUND -- OFFICE OF THE STATE CONTROLLER. There is hereby reappropriated to the
21 Office of the State Controller any unexpended and unencumbered balances ap-
22 propriated or reappropriated to the Office of the State Controller from the
23 Data Processing Services Fund for fiscal year 2026 in an amount not to exceed
24 \$2,500,000 to be used for nonrecurring expenditures related to the Computer
25 Service Center for the period July 1, 2026, through June 30, 2027. The Office
26 of the State Controller shall confirm the reappropriation amount, by fund,
27 expense class, and program, with the Legislative Services Office prior to
28 processing the reappropriation authorized herein.

29 SECTION 9. REAPPROPRIATION AUTHORITY FOR THE GENERAL FUND -- OFFICE OF
30 THE STATE CONTROLLER. There is hereby reappropriated to the Office of the
31 State Controller any unexpended and unencumbered balances appropriated or
32 reappropriated to the Office of the State Controller from the General Fund
33 for the behavioral health reporting data system for fiscal year 2026, to be
34 used for nonrecurring expenditures related to the behavioral health report-
35 ing data system for the period July 1, 2026, through June 30, 2027. The Of-
36 fice of the State Controller shall confirm the reappropriation amount, by
37 fund, expense class, and program, with the Legislative Services Office prior
38 to processing the reappropriation authorized herein.

39 SECTION 10. CASH TRANSFER -- OFFICE OF THE STATE CONTROLLER. The Office
40 of the State Controller is hereby directed to transfer unencumbered cash
41 balances from each allocated fund of the Technology Infrastructure Stabi-
42 lization Fund to the control agency account. Authorized appropriations
43 beginning on July 1, 2026, shall be transferred by the Office of the State
44 Controller from the control agency account; any unencumbered funds will

1 revert back to the control agency account as soon as practicable at the end
2 of the fiscal year.

3 SECTION 11. CASH BALANCE RECONCILIATION -- OFFICE OF THE STATE CON-
4 TROLLER. The Office of the State Controller shall use an appropriate amount
5 of moneys appropriated to such office in Section 1 of this act to complete an
6 accurate cash account balance and activity reconciliation by fund as fol-
7 lows:

8 (1) The Office of the State Controller shall reconcile all cash account
9 balances and activity in Luma to cash account balances and activity
10 maintained in the Treasury Accounting Transaction Reporting System
11 (TATRS), as reconciled to bank statements, for the month beginning July
12 1, 2023, and each consecutive month thereafter, through June 30, 2026.
13 This cash reconciliation shall occur for each fund and agency, includ-
14 ing the control agency.

15 (2) The Office of the State Controller shall report its findings on the
16 accuracy of cash balances after reconciliation as of June 30, 2026, to
17 the Joint Finance-Appropriations Committee (JFAC) and the Legislative
18 Services Office. Such report shall be made at the fall interim meeting
19 of JFAC or by October 16, 2026, whichever is earlier.

20 (3) The Office of the State Controller shall maintain all documenta-
21 tion to support these cash reconciliations by fund and agency reported
22 in Luma and TATRS and provide that documentation as necessary for audit
23 to support the opinion on the Annual Comprehensive Financial Report for
24 the state.

25 SECTION 12. PAYMENT OF BANK SERVICE FEES -- STATE TREASURER. Of the
26 amount appropriated to the State Treasurer in Section 1 of this act, no more
27 than \$406,600 from the General Fund and \$221,700 from the Professional Ser-
28 vices Fund may be used for the payment of bank service fees for the period
29 July 1, 2026, through June 30, 2027.

30 SECTION 13. CONTINUOUS APPROPRIATION AUTHORITY FOR THE AMERICA250 COM-
31 MEMORATION FUND -- STATE TREASURER. The State Treasurer is hereby granted
32 continuous appropriation authority for the America250 Commemoration Fund
33 for the period July 1, 2026, through June 30, 2027. Gifts, grants, other
34 donations, and interest earned and retained by the fund is continuously ap-
35 propriated for the purpose provided in Section 57-832, Idaho Code.

36 SECTION 14. CONDITIONS, LIMITATIONS, AND RESTRICTIONS. Appropriations
37 made pursuant to this act are subject to the conditions, limitations, and re-
38 strictions specified in this act.

39 SECTION 15. An emergency existing therefor, which emergency is hereby
40 declared to exist, this act shall be in full force and effect on and after
41 July 1, 2026.